

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #15	CCRB Case #: 201706374	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/19/2017 , Monday, 07/24/2017 9:30 AM	Location of Incident: § 87(2)(b)	Precinct: 40	18 Mo. SOL 1/24/2019	EO SOL 1/24/2019	
Date/Time CV Reported Sat, 07/29/2017 7:00 AM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Fri, 08/04/2017 1:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Javier Cordero	02796	925117	040 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Guillermin Monterrosa	02653	927704	040 DET
2. DT3 Jonathan Troncoso	1097	935874	040 DET

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Javier Cordero	Abuse: Detective Javier Cordero refused to provide his name to § 87(2)(b)	§ 87(2)(b)

Case Summary

On July 24, 2017, § 87(2)(b) submitted an online 311 complaint which was received at the IAB Command Center on July 29, 2017. Original Log #2017-29572 was generated and it was received at the CCRB on August 4, 2017.

On July 24, 2017 at approximately 9:30am, Detective Javier Cordero, Detective Jonathon Troncoso, and Detective Guillermo Monterrosa of the 40th Precinct Detective Squad knocked on the door of § 87(2)(b) in the Bronx. After he knocked on the door, Det. Cordero asked for § 87(2)(b) and § 87(2)(b) opened the door and Det. Cordero asked again for § 87(2)(b). As § 87(2)(b) approached the door, Det. Cordero requested that § 87(2)(b) come with them to the stationhouse. § 87(2)(b) stated that he was not going anywhere. § 87(2)(b) then instructed § 87(2)(b) to get Det. Cordero's business card, then stated to Det. Cordero, "Lemme get a business card with your name on it" (**Allegation A**). Det. Cordero stated that all § 87(2)(b) had to do was come to the precinct, he did not provide a business card nor say his name. § 87(2)(b) then closed his apartment door. After a brief conversation through the closed door, the detectives left the location. The following date, § 87(2)(b) turned himself in in regards to an open complaint report.

Mediation, Civil and Criminal Histories

- This case was deemed unsuitable for mediation due to § 87(2)(b)'s incarceration.
- A FOIL request was submitted to the New York City Comptroller's office on October 26, 2017 for notices of claim filed in regards to this incident. The response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (BR 03).
- Over his 17 year tenure, Det. Cordero has been the subject of six prior allegations involving five cases. None of these allegations have been substantiated.

Potential Issues

During his sworn statement, provided on September 5, 2017, § 87(2)(b) identified his son, § 87(2)(b) as being a victim in this case. § 87(2)(b) did not know any contact information for § 87(2)(b). Calls were placed to the phone number provided in § 87(2)(b)'s original complaint and a § 87(2)(b) § 87(2)(b) confirmed that she was § 87(2)(b)'s mother. She stated however that she did not know how to get in touch with her son. § 87(2)(b) then stopped responding to numerous contact attempts. Thus, no statement was obtained from § 87(2)(b).

§ 87(2)(b) alleged that the incident in question occurred on July 19, 2017. Based on DD5s created in regards to the criminal complaint filed against § 87(2)(b) and officer testimony, the investigation has determined that the alleged incident occurred on July 24, 2017 (BR 04, BR 05).

Findings and Recommendations

Allegations not pleaded

- Abuse of Authority-Threat to Damage Property: During his sworn statement, § 87(2)(b) alleged that, while outside the door, Det. Cordero stated, “You need to open the door or we’ll have to call the warrant squad and the warrant squad might have to knock the door down.” While Det. Cordero denied referencing the door being knocked down, Det. Monterrosa testified that Det. Cordero did inform § 87(2)(b) that they would get a warrant for his arrest, and if he did not open the door voluntarily, it might have to be knocked down. § 87(2)(g)

Allegation A –Abuse of Authority: Detective Javier Cordero refused to provide his name to

§ 87(2)(b)

§ 87(2)(b) alleged that his son, § 87(2)(b) requested Det. Cordero’s name, which Det. Cordero refused to provide.

§ 87(2)(b) testified that as he approached the opened door, § 87(2)(b) instructed him to request Det. Cordero’s business card. § 87(2)(b) then stated to Det. Cordero, “Lemme get a business card with your name on it.” Det. Cordero replied by asking § 87(2)(b) to come to the stationhouse with them. He did not provide a business card and never provided his name. § 87(2)(b) then stated to Det. Cordero, “All you gotta do is give me one of your business cards like we asked.” While § 87(2)(b) was able to identify Det. Cordero from a prior arrest, he only remembered that information after his mother’s home attendant reminded him of it (BR 04).

Det. Cordero testified that upon arriving at the location, he knocked on § 87(2)(b)’s door and stated his name and that he was looking for § 87(2)(b). After § 87(2)(b) identified himself through the closed door, Det. Cordero again stated his own name. § 87(2)(b) then began yelling and cursing while indicating that he remembered Det. Cordero had arrested him prior. § 87(2)(b) later said he was on the phone with his attorney. Det. Cordero testified that he provided his name again at that point. Det. Cordero testified that he couldn’t recall if any civilian asked for a business card with his name on it. He denied refusing to provide his name to any civilian at the location. Det. Cordero testified that the door to the apartment was never opened (BR 06).

Det. Troncoso and Det. Monterrosa testified that Det. Cordero provided his name upon knocking on the door and then multiple times after that. They also both testified that § 87(2)(b) became irate and mentioned knowing Det. Cordero from a prior arrest. Both Det. Troncoso and Det. Monterrosa denied hearing a civilian request Det. Cordero’s business card. They further

denied hearing Det. Cordero refuse to provide his name to any civilian at the location. Both detectives testified that the apartment door was never opened (BR 07, BR 08).

§ 87(2)(g)

Squad: 15

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date